

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Conor O'Shea	Team: Squad #05	CCRB Case #: 201900918	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 01/30/2019 12:40 PM	Location of Incident: Bruner Avenue between Pitman Avenue and Nereid Avenue	18 Mo. SOL 3/16/2021	Precinct: 47		
Date/Time CV Reported Wed, 01/30/2019 2:06 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/30/2019 2:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Jeremiah Williams	5408	927673	047 PCT
2. POM Matthew Palmerini	10321	942320	047 PCT
3. POM Bjondin Skender	29051	951269	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Jeremiah Williams	Abuse: Detective Jeremiah Williams stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Matthew Palmerini	Abuse: Police Officer Matthew Palmerini stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Bjondin Skender	Abuse: Police Officer Bjondin Skender stopped the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . DTS Jeremiah Williams	Abuse: Detective Jeremiah Williams strip-searched § 87(2)(b)	D . Substantiated
E . DTS Jeremiah Williams	Force: Detective Jeremiah Williams used physical force against § 87(2)(b)	E . Unsubstantiated
F . DTS Jeremiah Williams	Abuse: Detective Jeremiah Williams frisked § 87(2)(b)	F . Unsubstantiated
G . DTS Jeremiah Williams	Abuse: Detective Jeremiah Williams searched the vehicle in which § 87(2)(b) was an occupant.	G . Unsubstantiated
H . POM Bjondin Skender	Abuse: Police Officer Bjondin Skender searched the vehicle in which § 87(2)(b) was an occupant.	H . Unsubstantiated
I . DTS Jeremiah Williams	Abuse: Detective Jeremiah Williams interfered with § 87(2)(b) use of a recording device.	I . Unsubstantiated
J . POM Bjondin Skender	Abuse: Police Officer Bjondin Skender interfered with § 87(2)(b) use of a recording device.	J . Unsubstantiated
K . DTS Jeremiah Williams	Abuse: Detective Jeremiah Williams failed to provide § 87(2)(b) with a business card.	K . Substantiated
L . POM Bjondin Skender	Abuse: Police Officer Bjondin Skender failed to provide § 87(2)(b) with a business card.	L . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On January 30, 2019, § 87(2)(b) called 311, was transferred to the CCRB, and filed this complaint over the telephone.

On January 30, 2019, at approximately 12:40 p.m., § 87(2)(b) was driving alone to purchase food on his lunch break from work when Detective Jeremiah Williams, Police Officer Bjondin Skender, and Police Officer Matthew Palmerini—all from the 47th Precinct's Field Intelligence Officer (FIO) team but now assigned to the Criminal Intelligence Section—pulled him over, on Bruner Avenue between Pitman Avenue and Nereid Avenue in the Bronx (**Allegations A–C: Abuse of Authority, exonerated**). At Det. Williams' command, § 87(2)(b) exited the vehicle and placed his hands atop its roof. Det. Williams untied § 87(2)(b) outermost pants, pulled them down slightly, put his hand inside of § 87(2)(b) underwear, and allegedly began repeatedly "groping" § 87(2)(b) penis and testicles (**Allegation D: Abuse of Authority, substantiated**). Det. Williams allegedly grabbed § 87(2)(b) testicles in the palm of his hand with enough force to cause him pain for two days (**Allegation E: Force, unsubstantiated**). When Det. Williams reached his hand past § 87(2)(b) genitals and toward § 87(2)(b) anus, § 87(2)(b) fidgeted, and Det. Williams removed his hand from § 87(2)(b) underwear. Det. Williams frisked § 87(2)(b) (**Allegation F: Abuse of Authority, unsubstantiated**).

Det. Williams and PO Skender searched the passenger compartment of § 87(2)(b) car (**Allegations G–H: Abuse of Authority, unsubstantiated**). While inside of § 87(2)(b) vehicle, Det. Williams and PO Skender allegedly unplugged § 87(2)(b) dashboard-mounted camera (**Allegations I–J: Abuse of Authority, unsubstantiated**). The officers did not recover any contraband from § 87(2)(b) person or his vehicle. The officers did not arrest § 87(2)(b) or issue him any summonses. § 87(2)(b) did not receive a business card from Det. Williams or PO Skender (**Allegations K–L: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) recorded a brief cell phone video capturing the end of the incident (**Board Review 01**, summarized at **Board Review 02**). There is no other video evidence in this case. All references to video evidence in this report refer to the time stamp in the video player.

Findings and Recommendations

Allegation A—Abuse of Authority: Detective Jeremiah Williams stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B—Abuse of Authority: Police Officer Matthew Palmerini stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C—Abuse of Authority: Police Officer Bjondin Skender stopped the vehicle in which § 87(2)(b) was an occupant.

The following facts are undisputed. Det. Williams, PO Skender, and PO Palmerini drove past § 87(2)(b) in opposite directions. It was the middle of the day and they had a clear view of § 87(2)(b) car windows. § 87(2)(b) had non-factory issued window tints; he described the light transmittance as 65% for the rear windows and 75% for the front windows. The officers

pulled him over on suspicion of having excessively tinted windows—an infraction with which they had prior experience and training.

In New York State, it is a traffic violation to operate a vehicle with window tints with less than 70% light transmittance. NYS Vehicle and Traffic Law (VTL) § 375(12-a)(b) (Board Review 03). A police officer is justified in stopping a vehicle on suspicion of having excessively tinted windows when: (1) the window tints appear “dark”; (2) the officer observes the vehicle from a distance of “[a] couple feet” away; (3) nothing obstructs the officer’s view; (4) the area is well enough lit to make such an observation; (5) the moving vehicle “passe[s] directly” by the officer; (6) and the officer “ha[s] experience” in stopping vehicles, and issuing summonses, for excessive window tints. People v. Bacquie, 154 A.D.3d 648 (2d Dept. 2017) (**Board Review 04**).

It is undisputed that § 87(2)(b) vehicle had window tints on the date of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegations A–C** be closed as **exonerated**.

Allegation D—Abuse of Authority: Detective Jeremiah Williams strip-searched § 87(2)(b)

As will be discussed in the section below regarding **Allegations F–H**, the officers suspected that § 87(2)(b) had been smoking marijuana in his vehicle, and Det. Williams frisked § 87(2)(b) at some point after § 87(2)(b) exited the vehicle. The officers did not recover any drugs, weapons, or other contraband from § 87(2)(b). None of the officers prepared a stop and frisk report regarding the incident. Det. Williams failed to equip himself with a BWC at the start of his tour that day despite being assigned one. PO Skender and PO Palmerini were equipped with, and failed to activate, their BWCs. There is no video or audio of the portion of the incident in which this allegation occurred.

§ 87(2)(b) (**Board Review 05, 06**) testified that Det. Williams—whom he knows to have a reputation as “Ass-man” in the community—ordered him to exit his vehicle and stand facing it with both hands atop it. § 87(2)(b) was wearing boxers, a pair of athletic shorts, and baggy camouflage pants with a drawstring. Det. Williams untied the drawstring on § 87(2)(b) outermost pants, pulled them down slightly, and reached his hand inside of § 87(2)(b) underwear. Det. Williams then began “groping” § 87(2)(b) genitals and “rearranging” § 87(2)(b) penis and testicles. Det. Williams then began to reach his hand further inside of § 87(2)(b) underwear, beyond his genitals and toward his anus. At this point, § 87(2)(b) fidgeted, and Det. Williams removed his hand from § 87(2)(b) underwear. Det. Williams then frisked § 87(2)(b).

§ 87(2)(b) began filming the incident on his cellphone after the officers finished the stop and returned to their vehicle (**Board Review 01**). Between 00:12 and 00:20 in the footage, § 87(2)(b) approaches Det. Williams and argues with him about the basis for the traffic stop. Between 00:21 and 00:31, the waistband of § 87(2)(b) camouflage pants—which have a drawstring—is visible on screen. § 87(2)(b) appears to be wearing black athletic shorts underneath the camouflage pants. The waistband of the pants sits a few inches below the waistband of the shorts. § 87(2)(b) tells Det. Williams, “This is why my pants is this high—you told me it was my weed.” Det. Williams tells § 87(2)(b) that he was smoking. § 87(2)(b) complains to Det. Williams that Det. Williams “grabbed [his] dick” and “did a whole bunch of shit [he] wasn’t [sic] supposed to do.” § 87(2)(b) tells the officers he is going to file a complaint against them and begins to walk away before doubling back and continuing to argue with them. At no point in the video does Det. Williams or any other officer dispute § 87(2)(b) that Det. Williams “grabbed [his] dick.”

Det. Williams (**Board Review 07**) testified that when he first drove past § 87(2)(b) and they made eye contact before the traffic stop began, § 87(2)(b) face appeared to be “[one of those] ‘Oh fuck’ looks, like ‘Oh shit.’” Det. Williams interpreted this facial expression to mean that § 87(2)(b) was “riding dirty” and had been discovered by the police to have contraband in his car. When Det. Williams tried to pull § 87(2)(b) over, § 87(2)(b) took slightly longer than usual to do so—driving approximately seven to eight houses down the street before stopping—which by itself made Det. Williams believe he was taking time to hide contraband. As Det. Williams approached § 87(2)(b) vehicle, he saw § 87(2)(b) “fidgeting” with his hands, but could not tell what if anything § 87(2)(b) was doing with his hands and did not observe any objects in his hands. Det. Williams presumed that § 87(2)(b) was trying to conceal contraband as the officers approached the car because he did not have any of the documents one would typically produce for officers during a car stop in his hands when they arrived at his car. During the ensuing traffic stop, § 87(2)(b) was verbally combative with the officers.

Det. Williams further testified that the only physical contact he had with § 87(2)(b) was a brief pat-down over the front of his clothing, swiping one hand once across § 87(2)(b) area near the waistline. Det. Williams denied untying § 87(2)(b) drawstring, putting his hand inside of § 87(2)(b) pants or underwear, or touching § 87(2)(b) genitals at any point. Det. Williams denied that he or any other officer ever strip-searched § 87(2)(b). When asked if he ever put his hand inside of § 87(2)(b) underwear, Det. Williams first asked, “Are you being serious?” before denying that he did so.

PO Skender (**Board Review 08**) testified that Det. Williams frisked § 87(2)(b) in the exact same manner as Det. Williams described above. PO Skender was able to see Det. Williams’ hands after Det. Williams frisked § 87(2)(b). PO Skender denied that Det. Williams frisked any other part of § 87(2)(b) body and denied that Det. Williams searched any of § 87(2)(b) pockets. PO Skender initially testified that Det. Williams did “nothing” with his hands after frisking § 87(2)(b). However, he later said he could not recall if Det. Williams loosened the drawstring of § 87(2)(b) pants, put his hand or hands inside of § 87(2)(b) pants, put his hand or hands inside of § 87(2)(b) underwear, or touched § 87(2)(b) genitals.

PO Palmerini (**Board Review 09**) testified that Det. Williams patted down § 87(2)(b) waist area and nowhere else but did not know exactly how Det. Williams did so, at least partially because PO Palmerini’s vantage point was somewhat obscured by the car. PO Palmerini denied that Det. Williams untied the drawstring of § 87(2)(b) pants, pulled the pants down even slightly, put his hand inside § 87(2)(b) pants, or put his hand inside § 87(2)(b) underwear. PO Palmerini did not remember whether § 87(2)(b) said anything about an officer having done so at any point during the incident.

For the reasons discussed below, the investigation credits § 87(2)(b) testimony over that of the officers regarding this allegation. § 87(2)(b) filed this complaint within a few hours of the incident. His testimony was internally consistent and also consistent with the cell phone video, which shows that § 87(2)(b) made a contemporaneous allegation during the incident that Det. Williams “grabbed [his] dick” and “did a whole bunch of shit [he] wasn’t [sic] supposed to do.” The cell phone video is also consistent with § 87(2)(b) testimony that Det. Williams lowered his pants in order to strip search him. It shows the waistline of § 87(2)(b) pants sitting below the waistline of his athletic shorts, and it shows that § 87(2)(b) directly referenced the lowered position of his pants when complaining to Det. Williams about the strip search. Crucially, PO Skender, who had an unobstructed view of Det. Williams’ hands after the frisk, did not deny in his CCRB testimony that Det. Williams ever put his hand inside of § 87(2)(b) pants or underwear. Instead, PO Skender conspicuously stated that he did not remember whether Det. Williams did so, even though his memory was strong enough to have specific recollections of other similar types of details from the incident. Given all of the evidence,

§ 87(2)(b) testimony in its totality is more credible than the officers' testimony as to

Allegation D.

NYPD Patrol Guide Procedure 208-05 (Board Review 10) defines strip searches and governs whether, where, and how they may be conducted: "A strip search is any search in which an individual's undergarments (e.g. bra, underwear, etc.) and/or private areas are exposed or in which an individual's clothing is removed, lifted up, or pulled down to expose undergarments or private areas. ... Strip searches may only be conducted with the knowledge and approval of the arresting officer's immediate supervisor or the borough Court Section supervisor. A strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods [i.e. the "frisk/field search" and stationhouse non-strip search mentioned in Patrol Guide Procedure 208-05(A) and (B)]." A strip search must be conducted "in utmost privacy."

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

Allegation E—Force: Detective Jeremiah Williams used physical force against § 87(2)(b)

As described above, there is no audio or video evidence of this portion of the incident. § 87(2)(b) (**Board Review 05, 06**) testified that, while Det. Williams was strip-searching him as described above, Det. Williams grabbed § 87(2)(b) testicles in the palm of his hand, skin to skin. Det. Williams did so with enough force to cause § 87(2)(b) pain for multiple days after the incident. § 87(2)(b) did not seek medical treatment in regards, and made no statements pertaining to genital pain in his cell phone video.

Det. Williams (**Board Review 07**) denied ever touching § 87(2)(b) genitals at all.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F—Abuse of Authority: Detective Jeremiah Williams frisked § 87(2)(b)

Allegation G—Abuse of Authority: Detective Jeremiah Williams searched the vehicle in which § 87(2)(b) **was an occupant.**

Allegation H—Abuse of Authority: Police Officer Bjondin Skender searched the vehicle in which § 87(2)(b) **was an occupant.**

The following facts are undisputed. At some point during the traffic stop, Det. Williams frisked § 87(2)(b) around his waistband area and did not recover any contraband. Det. Williams and PO Skender searched the passenger compartment of § 87(2)(b) car but did not find any contraband or marijuana.

§ 87(2)(b) (**Board Review 05**), who was on his lunch break when the officers pulled him over, denied that he was smoking marijuana before or during this incident, denied that his car smelled like marijuana, and denied that there was any marijuana in his car.

Det. Williams, PO Skender, and PO Palmerini (**Board Review 07–09**) all testified that § 87(2)(b) vehicle smelled like burnt marijuana, which Det. Williams and PO Skender said

was their only reason for the vehicle search. They first smelled this odor of marijuana when their vehicles drove past each other. At that point in time, Det. Williams and PO Skender saw smoke emanating from the car as well. PO Palmerini did not remember whether he saw any smoke.

Det. Williams and PO Skender both saw § 87(2)(b) throw an object out the window as they tried to pull him over. PO Skender said the object “could have been anything,” but was possibly a marijuana cigarette given the odor he smelled. Det. Williams described the object as a white object consistent with a marijuana cigarette and inconsistent with a tobacco cigarette. PO Palmerini hypothesized that § 87(2)(b) could have discarded a marijuana cigarette out the window before being pulled over, but he did not witness him doing so.

Det. Williams also recounted that, when their vehicles first passed, § 87(2)(b) locked eyes with him and made a shocked facial expression, which Det. Williams felt was indicative of § 87(2)(b) having contraband in the vehicle. Det. Williams further recounted that § 87(2)(b) took longer than necessary to pull over once the officers activated their vehicle’s lights and siren. As Det. Williams approached the vehicle on foot, he saw in the side mirror that § 87(2)(b) was fidgeting with his hands. § 87(2)(b) was immediately verbally combative when Det. Williams began speaking to him. Det. Williams believed § 87(2)(b) actions were indicative of someone taking time to conceal contraband. Det. Williams did not observe anything specific about § 87(2)(b) person to make him think that he was armed. Based on Det. Williams’ training and experience, performing a frisk in situations like this makes him feel “more comfortable.”

Given the conflicting testimony and absent any additional evidence, the investigation was unable to determine whether the odor of marijuana smoke was present in § 87(2)(b) vehicle. The investigation also could not determine if § 87(2)(b) delayed pulling over, fidgeted with his hands, and was immediately verbally combative with Det. Williams.

An officer may frisk a suspect provided that he has at least reasonable suspicion to believe that the suspect is armed and dangerous. NYPD Patrol Guide Procedure 212-11 (Board Review 11). An officer has probable cause to conduct a warrantless search of a vehicle and its occupants if, during a lawful traffic stop, that officer detects the odor of marijuana smoke. People v. Chestnut, 43 A.D.2d 260 (1974) (**Board Review 12**).

§ 87(2)(g)

It is therefore recommended that **Allegations F–H** be closed as **unsubstantiated**.

Allegation I—Abuse of Authority: Detective Jeremiah Williams interfered with § 87(2)(b) use of a recording device.

Allegation J—Abuse of Authority: Police Officer Bjondin Skender interfered with § 87(2)(b) use of a recording device.

As described above, none of the officers equipped with a BWC activated it during this incident. There is no video or audio evidence of the vehicle search.

§ 87(2)(b) (**Board Review 05, 06**) testified that he had a video camera mounted to the dashboard of his car. The dash-cam constantly recorded a live feed and stored that live feed when prompted to do so. The camera was only functional while it was turned on, and it was only on when it was plugged in. § 87(2)(b) did not activate the video storage feature during the incident, but the camera was plugged in and thus turned on at the outset of the stop. When § 87(2)(b) returned to his car after Det. Williams and PO Skender searched it, he noticed that the

dash-cam had been unplugged and, therefore, turned off. He did not see which officer unplugged it.

Although Det. Williams (**Board Review 07**) did not remember seeing a dash-cam in § 87(2)(b) car and PO Skender (**Board Review 08**) denied seeing one, PO Palmerini (**Board Review 09**) testified that he saw one affixed either to the rearview mirror or to the dashboard and that § 87(2)(b) mentioned its existence at some point. Det. Williams, PO Skender, and PO Palmerini all denied unplugging or turning off § 87(2)(b) dash-cam, and they denied seeing any other officer do so.

§ 87(2)(g)

It is therefore recommended that **Allegations I–J** be closed as **unsubstantiated**.

Allegation K—Abuse of Authority: Detective Jeremiah Williams failed to provide § 87(2)(b) with a business card.

Allegation L—Abuse of Authority: Police Officer Bjondin Skender failed to provide § 87(2)(b) with a business card.

As described above, the officers acknowledged that they stopped § 87(2)(b) vehicle, that Det. Williams frisked § 87(2)(b) and that Det. Williams and PO Skender searched the vehicle. The officers did not arrest § 87(2)(b) or issue him any summonses. The officers also acknowledged that they did not provide any business cards to § 87(2)(b).

Despite the fact that the RTKA went into effect on October 19, 2018, Det. Williams (**Board Review 07**) testified that over three months later, as of January 30, 2019, the 47th Precinct Field Intelligence Officers still had not been issued any RTKA business cards—whether the pre-printed or the fill-in-the-blank varieties. Det. Williams testified that he did not verbally provide any identifying information to § 87(2)(b) because § 87(2)(b) knew him and called him “Williams” during the incident.

PO Skender (**Board Review 08**) testified that he ran out of business cards that day before stopping § 87(2)(b). PO Skender did not provide any identifying information to § 87(2)(b) solely because § 87(2)(b) did not request any such information.

During a “law enforcement activity”—including frisks and vehicle searches—that does not result in an arrest or summons, an officer must offer the subject of that law enforcement activity a business card even if the subject does not specifically request one. An officer need not offer a business card if he is working undercover, if there are exigent circumstances requiring immediate action, if the officer reasonably suspects he or any other person is in danger of physical injury, if there is an imminent risk of damage to property, if there is the imminent potential for the escape of a suspect or for the destruction of evidence, if the officer is conducting a security search predicated upon entrance to a public building or facility, of if the officer is verifying the identity of a person seeking entry to an area access to which is restricted by the department due to a public health, public safety, or security concern. NYC Administrative Code 14-174(b)(3) (**Board Review 13**). If an officer who is required to provide a business card runs out of them at the time of a law enforcement activity, he must still offer to the subject of the law enforcement activity his name, rank, shield number, and command. NYC Administrative Code 14-174(b)(5) (**Board Review 13**).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations K–L** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) This is the first CCRB complaint in which § 87(2)(b) is listed as a complainant or victim (**Board Review 18**).
- Det. Williams has been a member of service for 19 years and has been a subject in 21 other CCRB complaints and 56 other allegations, two of which were substantiated:
 - CCRB case #200704005 involved a substantiated stop, a substantiated frisk, unsubstantiated physical force, § 87(2)(g) The Board recommended Charges and Specifications for the substantiated stop and frisk. However, the NYPD took no disciplinary action, purportedly due to the statute of limitations.
 - Please see **Board Review 19** for a more detailed explanation of Det. Williams' officer history—including an explanation of his "Ass-man" nickname.
- PO Skender has been a member of service for eight years and has been a subject in six other CCRB complaints and seven other allegations, none of which was substantiated. § 87(2)(g)
- PO Palmerini has been a member of service for 13 years and has been a subject in six other CCRB complaints and 17 other allegations, two of which were substantiated.
 - CCRB case #201707222 involved two substantiated allegations of search of person and one exonerated search of person. The Board recommended command-level instructions for one substantiated allegation and formalized training for the other. The NYPD imposed formalized training for both substantiated allegations.

CCRB Case # 201900918

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 11, 2020, the New York City Office of the Comptroller has no record of any Notice of Claim filed regarding this incident (**Board Review 20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: #05

Investigator: DG IM Giansante for Inv. O'Shea April 27, 2020
Signature Print Title & Name Date

Squad Leader: Daniel Giansante IM Daniel Giansante April 27, 2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date